

		and plaintiffs' declarations to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. IT IS ORDERED THAT Plaintiff must provide a [Proposed] Order in accordance with this ruling and with reference to the amendments to the settlement agreement within five (5) days of this ruling.
3	30-2025-01454520 Spencer as Successor-in-Interest vs. The Bank of New York Mellon Trustee	Defendants NewRez LLC dba Shellpoint Mortgage Servicing ("Shellpoint") and The Bank of New York Mellon, as Trustee for the Certificateholders of the CWABS Inc., AssetBacked Certificates, Series 2006-24's ("BNYM") (collectively, "Defendants") Motion for Relief from Waiver of Objections is DENIED AS MOOT, as Defendants did not waive their objections to written discovery that was never effectively served on Defendants. Defendants' Alternative Motion for an Order Confirming No Waiver Occurred is GRANTED. As a threshold matter, Plaintiffs filed two untimely oppositions to this Motion. For the conservation of judicial resources, the court considered the merits of these oppositions. However, Plaintiffs and Plaintiffs' counsel are admonished to comply with all procedural rules moving forward in this action with respect to both service and timely filing of their papers. Plaintiffs are warned that the court may exercise its discretion not to consider such procedurally defective filings in the future. Plaintiffs allege that they served written discovery on Defendants on February 4, 2026 when they served Ian A. Rambarran, the Chief Executive Officer of Klinedinst PC. (ROA 250 at p. 1.) However, Defendants' attorneys of record in this action are Marquis C. Stepteau and Neeru Jindal of Klinedinst PC. (Stepteau Dec. ¶ 4.) They "have made general appearances since the time of service of the Complaint and have been in regular communication with Plaintiffs' counsel, Peter Winkler, by email and telephone." (<i>Id.</i>) They "have also appeared jointly and separately at hearings and in connection with other matters related to this action." (<i>Id.</i>) "No other attorney representing Defendants have been in active communication with Mr. Winkler." (<i>Id.</i> ¶ 5.)

		Ian A. Rambarran is not counsel of record for Defendants in this action. (Stepteau Dec. ¶¶ 14, 16.) “He has not communicated with Mr. Winkler during this litigation and was not copied on the parties’ numerous email exchanges.” (<i>Id.</i> ¶ 16.) “He also was not one of the attorneys whom Ms. Jindal specifically and expressly requested that Plaintiffs serve with all pleadings and papers.” (<i>Id.</i>) Due to the ineffective service, it was not until March 27, 2026, that Defendants’ counsel learned of the written discovery, as it was disclosed in a meet-and-confer statement for the April 6, 2026 proceedings filed by Plaintiff’s counsel. (Stepteau Dec. ¶ 11.) “That was the first time Ms. Jindal and [Mr. Stepteau] became aware of the written discovery, which had never been served on either of [them].” (<i>Id.</i>) Defendants also state that “Plaintiffs’ counsel [] affixed Ms. Jindal’s signature to the meet-and-confer statement filed with the Court without her authorization or express approval,” and that “[t]he filing misleadingly suggested that Counsel agreed Defendants had been served with the discovery and that the parties had met and conferred regarding discovery responses that, in fact, had never been served on Defendants’ counsel.” (<i>Id.</i> ¶ 12.) In this action, Defendants’ counsel has informed Plaintiffs’ counsel several times that they had not been properly served on multiple filings. (Stepteau Dec. ¶¶ 6-10.) After not receiving the subject discovery, Defendants’ counsel attempted to meet and confer with Plaintiffs’ counsel twice, to no avail. (<i>Id.</i> ¶¶ 17-20.) Despite a promise to re-serve the discovery, Plaintiffs’ counsel never served the discovery on Defendants’ counsel of record. (<i>Id.</i>) Defendants’ counsel only obtained copies of the subject discovery by contacting counsel for another defendant in this action. (<i>Id.</i> ¶ 15.) On April 30, Defendants served discovery responses to Plaintiffs’ Form Interrogatories, Special Interrogatories, Requests for Production of Documents, and Requests for Admission. (<i>Id.</i> ¶ 21.) “A defendant appears in an action when . . . an attorney gives notice of appearance for the defendant.” (CCP § 1014.) “After appearance, a defendant or the defendant's attorney is entitled to notice of all subsequent proceedings of which notice is required to be given.” (<i>Id.</i>) “[I]n all cases where a party has an attorney in the action or proceeding, the service of papers, when required, must be upon the attorney instead of the party[.]” (CCP § 1015.) “The attorney of record is the person
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		the client has named as his agent upon whom service of papers may be made.” (<i>Reynolds v. Reynolds</i> (1943) 21 Cal. 2d 580, 584.) Another attorney at a firm representing a party is not an agent of the party to be served if the party did not designate that attorney as its agent for service of process, and there is no evidence of any ostensible agency. (<i>Wagner v. City of S. Pasadena</i> (2000) 78 Cal. App. 4th 943, 951.) “[I]n all actions or proceedings where a party has an attorney of record, the service of papers, when required, must be made upon the attorney, but the fact that the attorney may have represented the party in other matters does not authorize service in a matter in which he does not appear as an attorney.” (<i>Spencer v. Barnes</i> (1935) 6 Cal. App. 2d 35, 37.) Plaintiffs provide no authority demonstrating that service upon Mr. Rambarran, who is not Defendants’ attorney of record in this action, was effective service upon Defendants. The court finds that, under these circumstances, no relief from waiver of objections is required as the subject discovery was never properly served on Defendants. Defendants’ Request for Monetary Sanctions of \$2,100 is GRANTED IN PART. Here, there is no evidence to support the amount requested. Defendants cite to “(Stepteau Decl., ¶ 21)” to argue that \$2,100 was the amount incurred to bring these Motions, but paragraph 21 of the Stepteau Declaration is just a reference to the verified discovery responses, and an alleged “true and correct copy of the Verified Responses are attached hereto as ‘Exhibit H’ and incorporated herein by reference.” The court also notes that the verified responses were not provided, and Exhibit H is just the cover e-mail for the responses. Nevertheless, the court finds that Plaintiffs’ counsel’s failure to meet and confer for this Motion and misleading March 27, 2026 meet and confer statement filed with the court warrants some monetary sanctions. (CCP §§ 2023.010(i), 2023.020, 2023.030.) IT IS ORDERED THAT \$1,000.00 in sanctions is payable within sixty (60) days of this ruling by Plaintiffs’ counsel to Defendants. Defendants are ordered to give notice of this ruling.
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